

STATE OF NEW YORK

8766--A

2025-2026 Regular Sessions

IN ASSEMBLY

June 2, 2025

Introduced by M. of A. LEE, KELLES -- read once and referred to the Committee on Housing -- recommitted to the Committee on Housing in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the multiple dwelling law, in relation to the standards for openable windows in residential units

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 30 of the multiple dwelling law is amended by adding a new subdivision 11 to read as follows:

11. (a) Notwithstanding any other provision of this chapter, for newly developed residential units, including those created through the conversion of non-residential buildings to residential use, any provisions of this chapter requiring that windows be openable shall be deemed satisfied if the unit complies with the mechanical ventilation standards set forth by the American Society of Heating, Refrigerating and Air-Conditioning Engineers (ASHRAE) in ASHRAE Standard 62.1, Ventilation and Acceptable Indoor Air Quality, ASHRAE Standard 62.2, Ventilation and Acceptable Indoor Air Quality in Residential Buildings, or any successor standard, as amended or updated.

(b) Nothing in this section shall prevent a local government or municipality where this chapter applies from enacting or enforcing any law, code, or ordinance that imposes openable window requirements on residential units to ensure proper egress or to meet fire safety standards.

§ 2. This act shall take effect on the ninetieth day after it shall have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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